



Second Chance Pigeon Rescue

Adoption Contract

I, _____, (hereinafter referred to as “Adopter”) attest to the facts stated in the submitted Adoption Application and agree to the terms of the Second Chance Pigeon Rescue Adoption Contract (hereinafter referred to as “Adoption Contract”). Hereinafter, Adopter’s address is referred to as “Adopter’s Location.”

LEGAL NAME

PHONE #

ADDRESS

The following terms and conditions constitute a legal contract for the adoption of the pigeon(s) referred to above between SCPR and Adopter. These terms and conditions are entered into and agreed upon by both parties, and they acknowledge the legal worth of this contract as of:

DATE

____ / ____ / _____

Adopter consents to adopt the following pigeon(s) (hereinafter referred to as “Bird(s)”) from Marilyn Walz, operating under the name “Second Chance Pigeon Rescue” (hereinafter referred to as “SCPR”):

NAME

RESCUE ID

1. SCPR and Adopter agree to the adoption of the Birds outlined in this contract with Adopter at Adopter's Location.
2. Adopter agrees to submit post-adoption follow-up reports for the Bird(s), which are separately communicated through electronic communication to Adopter for completion within 24 hours for 1 day, 1 week, 1 month, and 3 months.
3. Adopter agrees that, for any reason, they are unable to keep the Bird(s), that Adopter will contact and notify SCPR of the inability to keep the Bird(s) in their care, and the Bird(s) will either be:
 - a. Returned to SCPR via shipping at the expense of SCPR, or
 - b. Returned to SCPR via pick up at the expense of SCPR and Adopter, or
 - c. Rehomed with SCPR's approval to a home approved by SCPR.
4. SCPR may request a suggested donation of \$ _____ for the Bird(s) (the "Adoption Donation"). Adoption Donation offsets costs expended by SCPR for health, nutrition, enrichment, housing, and veterinary care provided for the Bird(s) while in SCPR's care, and is optional. Payment is accepted via cash or Cash App and must be completed before or at the time of transfer of the Bird(s) to Adopter. Bird(s) Adoption Donation are non-refundable unless otherwise stated in writing.

**SCPR is not a 501(c)(3) nonprofit organization, and
therefore, the Adoption Donation is not tax-deductible.**
5. Adopter agrees to provide a caring and healthy home to the Bird(s) in accordance with this Adoption Contract. Adopter further agrees to the following care requirements:
 - The Bird(s) must not be raced, free flown, abandoned, dumped, released, experimented on, or be used in any other harmful activity.
 - The Bird(s) must not reproduce or be placed in a breeding situation.
 - The Bird(s) must be housed in a safe and secure enclosure, including protection from escape, injury, predators, or other hazards.
 - The Bird(s) must be provided a proper diet approved by SCPR, or otherwise recommended by a licensed avian veterinarian.
 - The Bird(s) must receive prompt veterinary care from a licensed avian veterinarian in the event of illness, injury, abnormal behavior, or signs of distress that warrant a veterinary visit.
 - The Bird(s) must remain in a smoke-free environment.

- The Bird(s) must not be subjected to neglect, intentional harm, improper handling, or abuse.
 - The Bird(s) must not be subjected to any conditions or care practices that are known to be harmful or that are not approved by SCPR or a licensed avian veterinarian.
6. Adopter shall allow SCPR to inspect the Adopter's Location after a 24-hour notice, in-person or via video call, to determine whether Adopter is complying with all terms and conditions of this Adoption Contract, including providing an acceptable environment for the Bird(s). If SCPR determines that Adopter is not complying with this Adoption Contract or that continued placement of the Bird(s) is not in the best interests of the Bird(s), SCPR may terminate this Adoption Contract. Upon termination, Adopter agrees to immediately:
 - a. Return the Bird(s) to SCPR via shipping at the expense of Adopter, or
 - b. Return the Bird(s) to SCPR via pick up at the expense of Adopter
 7. Any changes in Adopter's contact information must be made available to SCPR within 30 days.
 8. Adopter shall provide any information concerning the care and status of the Bird(s) to SCPR when requested.
 9. Adopter shall never sell, lease, loan, gift, or otherwise transfer (collectively "transfer") The Bird(s) in any way without prior approval of SCPR. If Adopter transfers the Bird(s) without express prior written or electronic approval of SCPR, SCPR will terminate the Adoption Contract and will remove the Bird(s) at the expense of Adopter.
 10. Adopter understands that the Bird(s) may have or may develop a different personality or different habits than initially communicated upon arrival to the Adopter's Location.
 11. Adopter and their family members shall release and discharge SCPR and all other persons or entities liable or claimed to be liable for any and all actions, claims, or complaints from damages, losses, and expenses sustained, or alleged to have been sustained, of any kind of nature whatsoever arising out of or relating to Adopter's

keeping of the Bird(s), except to the extent caused by the gross negligence or intentional misconduct of SCPR.

12. SCPR makes no representations, warranties, or guarantees and assumes no liability for the health, age, sex, temperament, behavior, or condition of the Bird(s). Adopter agrees to take the Bird(s) "AS IS" without any warranties.
13. Adopter agrees to be responsible for all required and subsequent veterinary care for the Bird(s).
14. The failure of SCPR to insist upon strict performance by Adopter of any provisions of this Adoption Contract shall not be deemed a waiver of any subsequent breach or default in any provisions of this Adoption Contract.
15. Should the Bird(s) die, Adopter shall provide immediate (within 12 hours) notice to SCPR.

By signing below, written or electronically, Adopter signifies they have read, understand, and agree to the terms of the submitted Adoption Contract and affirms that the responses in the Application are accurate and complete. Adopter understands and agrees to the terms of this Adoption Contract.

PRINTED NAME

SIGNATURE

DATE
